



MODI IS DETERMINED TO MAKE A BESTSELLING SLOGAN OF VICTIMHOOD; A FILE PHOTO OF THE RIOTS IN 2002 (RIGHT)

The Case History

- 2002: Over 1,100 die in riots in Gujarat, a majority of them Muslims, following the killing of 59 Hindus aboard the Sabarmati Express at Godhra.
- 2004: The Supreme Court transfers the Best Bakery case trial to Maharashtra.
- 2007: Zakia Jaffri, widow of slain Congress leader, Ehsan Jaffri, files a petition before the Supreme Court seeking action against Modi, his ministers, senior police officers and bureaucrats for their involvement or inaction.
- 2008: Supreme Court appoints an SIT under former CBI chief R.K. Raghavan to reinvestigate 10 riot cases.
- 2009: SIT arrests Gujarat minister Mayaben Kodnani for instigating attack on Muslims in Naroda Patiya.
- April 2009: On Zakia's petition, the court orders the SIT to probe the role of Modi and others in the riots.



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within the party—to contain him. As a BJP leader remarked: "It can turn out to be a double-edged sword for Modi: good for immediate political gains but bad in the long run."

The latest order against Modi is based on an application by Zakia Jaffri, wife of former Congress MP Ehsan Jaffri, who was among the 38 killed by a Hindu mob in Gulbarg

Society in the riots. In her petition filed in 2007, Zakia alleged that Modi had triggered the riots and that the police investigation in several cases was a charade calculated to shield and exculpate the chief minister, his ministerial colleagues, top police officials and bureaucrats—62 people in all. She wants Modi and others to be

charged with criminal conspiracy and murder. Hardcore Modiites allege that Zakia is being used by Left-leaning human rights activists. A recent SIT report to the Supreme Court narrated how at least three of the witnesses of a riot case in Ahmedabad told the police that they did not know the contents of their written complaint as they had signed on a prepared police statement handed over to them by a lawyer of a human rights activist.

In the case of another six witnesses who were in close contact with these activists, the SIT stated in its report to the apex court that their written statements didn't match their oral version. It also said allegations that the then Gujarat DGP P.C. Pande had deliberately helped the rioters in the Gulbarg Society massacre by inaction were unsubstantiated. Says a senior police official who is not associated with the riots: "If the SIT found some Gujarat police officials to be guilty in the 2002 Gujarat riots, it also found that human rights activists had worked overtime to fix many who were innocent. The officials from outside Gujarat found that the picture in Gujarat was less alarming than the one projected by these activists." The Nanavati Commission set up by the Modi Government to investigate the riots has given only a partial report so far. While it has supported the Gujarat Police probe into the Godhra carnage, it is yet to give its report on the riots that followed.

The latest Supreme Court ruling follows the arrest by the SIT of Mayaben Kodnani, a state minister, for allegedly encouraging a Hindu mob to attack Muslims in Naroda Patiya on the outskirts of Ahmedabad. Earlier the team had arrested a deputy superintendent of police. It will be revelation time again in three months when the SIT files its report, and the gainer or loser will be one man. Narendra Modi, one of the smartest politicians at work today, cannot afford to idle away that precious time. ■